

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 31-004
Amendments to Title 8 of the Chickasaw Nation Code
(Election Rules)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for the providing of mailing list to candidates, and

WHEREAS, the Legislature desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 8 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

"SECTION 8-100.2 **DEFINITIONS.**

For the purpose of this Title 8, the following words shall have the meanings respectively ascribed to them ~~in this section~~ unless the context clearly requires otherwise:

9. "Member ID Number" means the number assigned to each Voter on the voter data base. The Member ID Number may be used by the Election Commission and Election Secretary/Tribal Registrar to track Activity Report and Voters List information only and shall not be used to determine which Voter voted for any particular Candidate.

109. "Non-resident Voter" means a registered Voter who does not reside within the boundaries of the Chickasaw Nation;

1110. "Recall Petition" means a method of removal of an elected official in which the power of removal is granted by Article XVI, Section 2, of the Constitution and reserved by the same to the people. It is the right or procedure by which a public official may be removed from office before the end of his term of office by a vote of the people to be taken on the filing of a petition signed by not less than twenty-five percent (25%) of

the registered Voters residing within the district or area from which the official was elected;

1211. "Residency/Resident" means the act of residing or one who resides within the territorial jurisdiction of the Chickasaw Nation as the primary place of domicile;

1312. "Tribal Assets" means property of all kinds including real, personal and intellectual property such as the use of the Great Seal of the Chickasaw Nation;

1414. "Voter" means a Chickasaw citizen who has registered to vote in accordance with this Title 8; and

1615. "Voters List" means a list of Chickasaw citizens who have registered as Voters with the Election Secretary/Tribal Registrar in accordance with this Title 8.

SECTION 8-200.3

FILING PERIOD.

The filing period for tribal elections shall be the first Monday, Tuesday and Wednesday in June unless otherwise provided by law for purposes of special elections. Hours of filing on each day shall be between 8:00 a.m. and 4:30 p.m. The Declaration of Candidacy shall be filed no later than 4:30 p.m. on the Wednesday of the week of filing in the office of the Election Secretary/Tribal Registrar. Candidates may only file for one (1) position during any election.

SECTION 8-200.4

FILING FEE; VOTER LISTS.

E. Qualified Candidates and Candidate/teams, whether they draw an opponent(s) or not, shall each receive a computer printout; and CD ~~and adhesive labels~~ of the Voters List for the district or districts for which they are a Candidate. Such list shall contain, only, each Voter's name, address and zip code, in zip code order; and Member ID Number and shall be available within five (5) days following the filing period. At that time, Candidates may compare their lists to the master list of their District(s) for accuracy. All qualified Candidates receiving such list shall, on the afternoon of the day after Voter registration closes, receive a list of the qualified Voters who were added up to the time registration closed. The updated Voters List shall include any and all status changes. There shall be no additional charge for the updated list. All such CDs shall be formatted for operation in IBM compatible computers and current software.

F. Reserved. ~~Eligible Candidates shall receive another set of updated adhesive labels of the Voters List for the district or districts for which they are a Candidate for any runoff election.~~

G. The Election Secretary/Tribal Registrar shall personally review all Voters Lists; and CDs ~~and adhesive labels~~ to insure that all Candidates are treated fairly and equitably with

regard to Voter Lists and Voter information. Each Voters List distributed within a particular district shall be identical to others distributed within that district in the interest of fairness to a Candidate.

SECTION 8-200.5**RESERVED. ADDITIONAL MAILING LABEL FEES.**

~~Qualified Candidates for elective office of the Chickasaw Nation shall be entitled to purchase additional self-adhesive mailing labels of the registered Voters for each district in which they are a Candidate at a cost of \$50.00 per district. "Additional" is to be defined in this circumstance as those copies beyond the first free set of labels for each regular or runoff election. Only qualified Candidates for elective office in the Chickasaw Nation may have access to the mailing labels.~~

SECTION 8-400.4**NO BALLOT WHEN NO CONTEST.**

B. If only one (1) Candidate files for an office, the Election Secretary/Tribal Registrar shall certify that Candidate as elected as prescribed in Section 8-400.18 below ~~on the~~ last Tuesday of July.

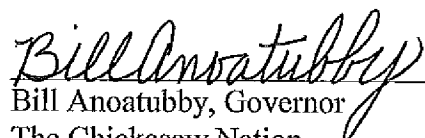
SECTION 8-400.8**OUTER ENVELOPE INFORMATION, RETURN ENVELOPE.**

D. The Outer envelope may also have a printed number or bar code that is generated from a Member ID Number for purposes of tracking Activity Report and Voters List information only. Any such Member ID Number or bar code shall not be used to determine which Voter voted for any particular Candidate."

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on March 21, 2014, by a vote of 11 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: MAR 24 2014

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 31-004
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(Election Rules)

Explanation: This resolution amends the election rules and procedures located in Title 8 of the Chickasaw Nation Code.

Presented By: Election Rules and Procedures *Ad Hoc* Committee